



# MONOPOLIES AND RESTRICTIVE TRADE PRACTICES (CONTROL AND PREVENTION) (AMENDMENT) ORDINANCE, 2002

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**MONOPOLIES AND RESTRICTIVE TRADE PRACTICES (CONTROL AND PREVENTION) (AMENDMENT) ORDINANCE, 2002**

**ORDINANCE CI OF 2002**

***An Ordinance further to amend the Monopolies and Restrictive Trade Practices (Control and Prevention) Ordinance, 1970***

WHEREAS it is expedient to amend the Monopolies and Restrictive Trade Practices (Control and Prevention) Ordinance, 1970, (V of 1970), for the purposes hereinafter appearing;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999; and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:--

**1. Short title and commencement.**-(1) This Ordinance may be called the Monopolies and Restrictive Trade Practices (Control and Prevention) (Amendment) Ordinance, 2002.

(2) It shall come into force at once.

**2. Amendment of section 25, Ordinance V of 1970.** In the Monopolies and Restrictive Trade Practices (Control and Prevention) Ordinance, 1970, (V of 1970), in section 25,-

(a) in clause (d), for the full stop at the end a comma and word, "or" shall be substituted; and

(b) after clause (d), amended as aforesaid, the following new clause shall be added, namely:-

"(c) to the activity or functions of an undertaking or undertakings as are regulated, prescribed, determined or required to be approved by a Regulatory Authority.

**Explanation.-** For the purposes of clause (e) the expression "Regulatory Authority" means-

- (i) the National Electric Power Regulatory Authority established under the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997);
- (ii) the Pakistan Telecommunication Authority established under the Pakistan Telecommunications (Re-organisation) Act, 1996 (XVII of 1996);
- (iii) the Oil and Gas Regulatory Authority established under the Oil and Gas Regulatory Authority Ordinance, 2002 (XVII of 2002); and
- (iv) any other Regulatory Authority as the Federal Government may, by a notification in the official Gazette, specify."

